

1.

CASE #	CASE NAME	HEARING NAME
CVRI2402839	BARTELS VS REGENTS OF THE UNIVERSITY OF CALIFORNIA	MOTION TO COMPEL FURTHER RESPONSE AGAINST DEFENDANTS BOMOTTI, WILSON WATKINS, MUELLER, UHRICH, HEDYATI, STARK & JESKE

Tentative Ruling:

Defective Separate Statement

Plaintiff's separate statement fails to comply with California Rules of Court, rule 3.1345(c) that requires it to be full and complete so that no person is required to review any other document in order to determine the full request and full response. (See Cal. Rules of Court, rule 3.1345(a)(3).)

Timeliness

Per the December 2025 IDC, Defendant served verified statements on March 20, 2026 via email. The deadline for Plaintiff to file his motion was May 6, 2026. Plaintiff's motion is timely.

Meet-and-Confer

The parties filed a joint statement on July 13, 2026. Plaintiff filed a declaration on July 17, 2026. The declarations evidence compliance with the Court's meet and confer order on June 23, 2026.

Merits

At the IDC on December 18, 2025, all prior requests were mooted in light in of IDC. The stipulated categories of production per the IDC were:

Category 1:

1. As related to Pierce Hall only: disparity in policy or conduct in action related to movement/relocation and/or spoilage of lab within the building caused by an external force (not voluntary of labs)
2. As related more broadly to the College: disparity in policy or conduct in action related to movement/relocation and/or spoilage of lab within the College Caused by an external force and how it was treated within the last 5 years preceding the affected period of 2014.

3. This category includes payment to students to do research and the policy related to such

Category 2:

1. Name and other information of the 7 named defendants not otherwise dismissed who made policy decisions regarding Plaintiff's lab movement.

Category 3:

1. Verified response related to complaints, reports, and other assessments of Plaintiff that there is nothing further responsive to produce (as related to 2 particular courses of conduct: 1A and 110B

Category 4:

1. Names and information of individuals who made the decision to send out Plaintiff's evaluation pertaining to any type of advancement to a sister university and of those who decided not to provide other avenue
2. Names and information of individuals who made a decision to make initial post for Associate Dean search, who decided to withdraw and repost with different qualifications
3. Also to provide verified response

As to the verifications themselves, each declarant signed the declaration in compliance with Code of Civil Procedure section 2031.250, subdivision (a).

As to the RFPs, Individual Defendants served supplemental responses on February 6, 2025. Plaintiff's motion does not address those responses. Even if Plaintiff disputes those responses now, they would be untimely. (Code Civ. Proc., § 2031.310, subd. (c) [motion to compel further responses must be made within 45 days of the service of verified responses].)

The Court denies Plaintiff's motion because Individual Defendants complied with the stipulation at the IDC.

Sanctions

Code of Civil Procedure sections 2031.310, subdivision (d) provides that the court shall impose a monetary sanction against any party or attorney who unsuccessfully makes or opposes a motion to compel further responses to discovery unless it finds the party or attorney acted with substantial justification or that other circumstances make the imposition of the sanction unjust.

Here, Individual Defendants seek sanctions in the amount of \$3,466.20. Attorney Pena bills at an hourly rate of \$522 per hour and spent 3.8 hours reviewing and revising the opposition. Pena's associate, Matthew S. Gordon, spent 4.2 hours drafting his opposition and bills at a rate of \$353 per hour. **The Court issues sanctions against Plaintiff in the reduced amount of \$1482.60 based on Gordon's expended time, payable to Defendant's counsel within thirty (30) days of service of the notice of ruling.**

Defendant is ordered to give notice.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404781	COLOCHO VS CITY OF EASTVALE	MOTION FOR SUMMARY JUDGMENT OR IN THE ALTERNATIVE SUMMARY ADJUDICATION ON COMPLAINT FOR OTHER PERSONAL INJURY/PROPERTY DAMAGE/WRONGFUL DEATH TORT (OVER \$35,000) OF KETTY COLOCHO BY CITY OF EASTVALE

Tentative Ruling:

The City's request for judicial notice is denied in its entirety.

Plaintiff's evidentiary objections are overruled in their entirety.

Plaintiff's request for a continuance to conduct further discovery under Code of Civil Procedure section 437c, subdivision (h), is denied.

Motion for Summary Judgment

I. Procedural Issues

A. Untimely Opposition

An opposition to a motion for summary judgment "shall be served and filed not less than 20 days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise." (C.C.P. § 437c(b)(2).)

The hearing on this motion for summary judgment is set for August 6, 2026. Accordingly, Plaintiff should have filed her opposition by Friday, July 17, 2026. However, Plaintiff did not file the opposition until Monday, July 20, 2026. Plaintiff's